

**SECURITY NATIONAL INSURANCE COMPANY v
A.W. MILLER ENTERPRISES**

18CV43625

DEFENDANT'S MOTION ON LIEN APPLICATION

The Court notes Plaintiff, Security National Insurance Company, dismissed their claim on February 1, 2022. The remaining parties dismissed this action by filing a Stipulation & Order, filed on September 16, 2024. This case is now fully **DISMISSED**, and the matter is dropped from calendar.

The Clerk shall provide notice of the Ruling forthwith. No further formal Order is required.

JP MORGAN CHASE BANK, NA v BURGDORF

22CF13995

DEFENDANT'S CLAIM OF EXEMPTION

On May 18, 2023, JP Morgan Chase Bank, N.A. ("Chase") obtained a judgment against Defendant Taylor J. Burgdorf ("Burgdorf") in the amount of \$8669.04. After Calaveras County withheld funds, Burgdorf filed a claim of exemption which Chase opposes.

Code of Civil Procedure section 706.050(a) states:

Except as otherwise provided in this chapter, the maximum amount of disposable earnings of an individual judgment debtor for any workweek that is subject to levy under an earnings withholding order shall not exceed the lesser of the following: (1) Twenty-five percent of the individual's disposable earnings for that week. (2) Fifty percent of the amount by which the individual's disposable earnings for that week exceed 40 times the state minimum hourly wage in effect at the time the earnings are payable.

Burgdorf states that his gross monthly pay is \$3,841.78. From this monthly amount, Burgdorf claims that \$862.08 is deducted for federal and state withholding and that his monthly take home pay is \$2979.70. After expenses, Burgdorf states that his disposable income is \$71.17. Burgdorf does not specifically identify the source of his monthly income but states that he is paid weekly.

Burgdorf seeks to have all of his earnings exempted. Chase opposes the claim of exemption but states it is "willing to accept the applicable rate of net earnings under CCP 706.050 per pay period from Judgment Debtor by way of payment installment, until balance owing is paid in full."

Burgdorf states that his disposable earnings per week are \$71.17. Twenty-five percent of that is \$17.93.

Plaintiff's claim for exemption is **DENIED. Calaveras County shall withhold \$17.93 per week or until the judgment is satisfied.**

The Clerk shall provide notice of the Ruling forthwith. No further formal Order is required.